

National Bank For Agriculture And Rural Development (Additional) General Regulations, 1984

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National Bank For Agriculture And Rural Development (Additional) General Regulations, 1984

Rule

NATIONAL-BANK-FOR-AGRICULTURE-AND-RURAL-DEVELOPMENT-ADDITIONAL-GENERAL-REGULATIONS-1984 of 1984

Published on 1 January 1984

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[Note: The original publication document is not available and this content could not be verified.]

National Bank For Agriculture And Rural Development (Additional) General Regulations, 1984

Last Updated 31st May, 2018

In exercise of the powers conferred by sub-section (1) of section 60 of the National Bank for Agriculture and Rural Development Act, 1981 (61 of 1981), the Board of Directors of the National Bank for Agriculture and Rural Development, with the previous approval of the Central Government and in consultation with the Reserve Bank of India, hereby makes the following regulations, namely :-

Chapter I

Introductory

1.

Short title and commencement.

(1)

These regulations may be called the National Bank for Agriculture and Rural Development (Additional) General Regulations, 1984.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definitions.

- In these regulations, unless the context otherwise requires, -

(a)

"Act" means the National Bank for Agriculture and Rural Development Act, 1981 (61 of 1981);

(b)

"Advisory Council" means the Advisory Council constituted under sub-section (1) of Section 14;

(c)

"Executive Committee" means the Executive Committee constituted under sub-section (1) of section 13;

(d)

"section" means a section of the Act;

(e)

words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

Chapter II

Executive Committee and Meetings Thereof

3.

Number of Directors of the Executive Committee and its functions.

(1)

The Executive Committee shall consist of the Chairman, the Managing Director and the following other Directors to be nominated by the Chairman -

(a)

one each from amongst the Directors appointed under clauses (b), (c), (d) and (e) of sub-section (1) of section 6; and

(b)

one of the whole time Directors, if any, appointed under sub-section (3) of Section 6.

(2)

Subject to the provisions of these regulations and such special or general directions as the Board may give from time to time, the Executive Committee shall have all the powers of the Board to transact the usual business of the National Bank except powers in relation to matters which are specifically reserved by the Act to the Board.

4.

Meetings of the Executive Committee.

- [(1) The Chairman or in his absence, the Managing Director may call a meeting of the Executive Committee at Mumbai on such date and at such time as he may specify after giving a notice of not less than ten clear days :

Provided that if the Chairman or in his absence, the Managing Director considers it necessary so to do, he may call a meeting of the Executive Committee at any other place in India:

Provided further that there shall be at least four meetings during a calendar year.]

[Substituted by Notification No. NB.Secy/C-4/2018-19, dated 26.4.2018.]

(2)

Where the Chairman considers it necessary to call an emergency meeting of the Executive Committee, a notice of not less than five clear days shall be given to the members of the Executive Committee to enable them to attend the meeting.

(3)

President of the Meeting. - The Chairman, or, if for any reason he is unable to attend any meeting, any other member of

the Executive Committee nominated by the Chairman in this behalf and in the absence of such nomination, any other member of the Executive Committee elected by the members present at the meeting, shall preside at the meeting of the said Committee.

(4)

Quorum. - Three members of the Executive Committee, of whom one should be a Director appointed under clause (b) or clause (c) or clause (d) or clause (e) of sub-section (1) of section 6, shall form the quorum at its meetings.

(5)

Save as otherwise provided in these regulations, the provisions of the Act and the National Bank for Agriculture and Rural Development General Regulations, 1982, so far as may be, shall apply to the meetings of the Executive Committee as they apply to the meetings of the Board.

(6)

Proceedings of the Meetings. - Copy of the proceedings of each meeting of the Executive Committee shall be circulated for information to the Directors of the Board as soon as possible after the same are signed by the member presiding at that meeting or the next succeeding meeting.

Chapter III

Meetings of the Advisory Council

5.

Meetings of the Advisory Council.

(1)

The Chairman or in his absence the Managing Director may convene a meeting of the Advisory Council, ordinarily once in six months at the Head Office of the National Bank on such date and at such time as he may specify and a notice of not less than one clear fortnight shall be given to the members of the Advisory Council to enable them to attend the meeting.

(2)

President of the Meeting. - The Chairman, or if for any reasons he is unable to attend any meeting, any other member of the Advisory Council nominated by the Chairman in this behalf, and in the absence of such nomination, any other member of the Advisory Council elected by the members present at the meeting, shall preside at the meeting of the Advisory Council.

(3)

Quorum. - One-third of the members of the Advisory Council (any fraction being ignored) or five members thereof, whichever is less, shall form the quorum at its meetings.

6.

Sitting fees and allowances for the members of the Advisory Council.

(1)

Each member of the Advisory Council other than a Director or an Officer of the Government or of the Reserve Bank of India shall receive a fee of Rs.500/- for every meeting of the Advisory Council attended by him and shall be reimbursed travelling and halting expenses, if any, at such rates as the Board may, with the previous approval of the Central Government and in consultation with the Reserve Bank of India, specify from time to time.

(2)

A member of the Advisory Council who is a Director (other than the Managing Director or a whole time Director) shall receive such fees and allowances as are admissible to him for attending a meeting of the Board.

(3)

A member of the Advisory Council who is an officer of the Government or of the Reserve Bank of India shall receive such allowances as are admissible to him for attending a meeting of the Board.

Chapter IV

General Provisions

7.

Accounts.

- The Board shall cause accounts to be kept of all the assets and liabilities and receipts and payments of the National Bank.

8.

Annual Accounts.

- The annual accounts of the National Bank shall be prepared and set out in, -

(1)

a Balance Sheet as on 31st March of the year in the form specified in Schedule A annexed hereto or as near thereto as circumstances admit;

(2)

a Profit and Loss Account for the year ended 31st March in the form specified in Schedule B annexed hereto or as near thereto as circumstances admit.

"A"

(Form of the Balance Sheet)

"B"

(Form of Profit and Loss Account)

A

{See Regulation 8(1)}

National Bank for Agriculture and Rural Development Balance Sheet as on 30th June

Liabilities

Rs.

Rs.

Previous

Year Rs.

1

2

3

4

5

1. Capital

2. Reserve Fund and other Reserves :

(i)

Reserve Fund

(ii)

Research and Development Fund

(iii)

Other Reserves

(iv)

Profit and Loss Account

3. National Rural Credit (Long Term Operations) Fund

4. National Rural Credit (Stabilisation) Fund

5. Gifts, Grants, Donations and Benefactions

6. Deposits

(i)

Central Government

(ii)

State Government

(iii)

Others

7. Bonds and Debentures :

8. Borrowings :

(i)

from Central Govt.

(ii)

from Reserve Bank of India

(ii)

from others;

(a)

In India

(b)

Outside India

9.

Current Liabilities and Provisions :

Balance Sheet as on 30th June

Assets

Rs.

Rs.

Previous Year Rs.

1

2

3

4

1. Cash and Bank Balances

(i)

In Hand

(ii)

With Reserve Bank of India

(iii)

With Others

(a)

In India

(b)

Outside India

2. Investments

A. Promissory Notes, Stocks and Securities of the Central Government at cost (specify face value and market value)

B. Shares and Securities of notified Institutions at cost (specify face value and market value).

3. Advances

A. Refinance Loans

(i)

Production and Marketing Credit

(ii)

Conversion Loans for Production Credit

(iii)

Rescheduling of Loans to Artisans, Small Scale Industries, etc.

(iv)

Medium Term Investment Credit - Non Project Loans

(v)

Other Investment Credit

(1)

Medium Term and Long Term Project Loans

(2)

Long Term Non-Project Loans

B. Direct Loans

4. Premises

At cost

Additions during the year

Less : Depreciation

5. Furniture and Fixtures

At Cost

Additions during the year

Less : Depreciation

6. Other Assets :

(1)

Accrued Interest

(2)

Discount on Issue of Bonds and Debentures (to be adjusted)

(3)

Deposits

(4)

Sundry debtors

(5)

Expenditure Recoverable

7. Profit and Loss Account

SCHEDULE

B

[See

Regulation 8(2)]

NATIONAL

BANK FOR AGRICULTURE AND RURAL DEVELOPMENT PROFIT AND LOSS ACCOUNT

FOR THE YEAR ENDED 30TH JUNE

Rs.

Rs.

Previous

Year

Rs.

1

2

3

4

5

1. Interest Paid

2. Salaries and Allowances

3. Contribution to Staff superannuation Funds

4. Travelling and Other Allowances in connection with Directors', Committee Members' Meetings.

5. Directors' and Committee Members' Fees

6. Rent, Rates, Insurance, Lighting, etc.

7. Travelling Expenses

8. Printing and Stationery

9. Postage, Telegrams and Telephones

10.

Repairs

11.

Auditors' Fees

12.

Legal Charges

13.

Miscellaneous expenses

14.

Depreciation

15.

Profit carried to Balance Sheet

TOTAL

PROFIT AND LOSS ACCOUNT FOR THE YEAR ENDED

30TH JUNE

Rs.

Rs.

Previous Year

Rs.

1

2

3

4

5

1. Interest (Recieved)

2. Discount and Commission

3. Other Receipt

4. Loss, if any

TOTAL

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Translation